

Ministry of Finance and National Planning

Zambia Devolution Support Program (P178492) (IPF component)

ENVIRONMENTAL AND SOCIAL COMMITMENT PLAN (ESCP)

May 13, 2022

ENVIRONMENTAL AND SOCIAL COMMITMENT PLAN

1. The Ministry of Finance and National Planning (the Recipient) will implement the Zambia Devolution Support Project (the Project), with the involvement of the Devolution Secretariat and the Ministry of Local Government and Rural Development, as set out in the Financing Agreement. The International Development Association (the Association), has agreed to provide financing for the Project, as set out in the referred agreement.
2. The Recipient shall ensure that the Project is carried out in accordance with the Environmental and Social Standards (ESSs) and this Environmental and Social Commitment Plan (ESCP), in a manner acceptable to the Association. The ESCP is a part of the Financing Agreement. Unless otherwise defined in this ESCP, capitalized terms used in this ESCP have the meanings ascribed to them in the referred agreement.
3. Without limitation to the foregoing, this ESCP sets out material measures and actions that the Recipient shall carry out or cause to be carried out, including, as applicable, the timeframes of the actions and measures, institutional, staffing, training, monitoring, and reporting arrangements, and grievance management. The ESCP also sets out the environmental and social (E&S) instruments that shall be adopted and implemented under the Project, all of which shall be subject to prior consultation and disclosure, consistent with the ESS, and in form and substance, and in a manner acceptable to the Association. Once adopted, said E&S instruments may be revised from time to time with prior written agreement by the Association.
4. As agreed by the Association and the Recipient, this ESCP will be revised from time to time if necessary, during Project implementation, to reflect adaptive management of Project changes and unforeseen circumstances or in response to Project performance. In such circumstances, the Recipient and the Association agree to update the ESCP to reflect these changes through an exchange of letters signed between the Association and the Recipient Director Local Government Finance. The Recipient shall promptly disclose the updated ESCP.

MATERIAL MEASURES AND ACTIONS		TIMEFRAME	RESPONSIBLE ENTITY
MONITORING AND REPORTING			
A	REGULAR REPORTING Prepare and submit to the Association regular monitoring reports on the environmental, social, health and safety (ESHS) performance of the Project, including but not limited to the implementation of the ESCP, status of preparation and implementation of E&S instruments required under the ESCP, stakeholder engagement activities, and functioning of the grievance mechanism(s).	Submit quarterly reports to the Association] throughout Project implementation, commencing after the Effective Date. Submit each report to the Association no later than 10 days after the end of each reporting period.	Ministry of Finance and National Planning
B	INCIDENTS AND ACCIDENTS Promptly notify the Association of any incident or accident related to the Project which has, or is likely to have, a significant adverse effect on the environment, the affected communities, the public or workers, including, inter alia, cases of sexual exploitation and abuse (SEA), sexual harassment (SH), and accidents that result in death, serious or multiple injury. Provide sufficient detail regarding the scope, severity, and possible causes of the incident or accident, indicating immediate measures taken or that are planned to be taken to address it, and any information provided by any contractor and/or supervising firm, as appropriate. Subsequently, at the Association's request, prepare a report on the incident or accident and propose any measures to address it and prevent its recurrence.	Notify the Association no later than 48 hours after learning of the incident or accident. Provide subsequent report to the Association within a timeframe acceptable to the Association	Ministry of Finance and National Planning
C	CONTRACTORS' MONTHLY REPORTS Require contractors and supervising firms to provide monthly monitoring reports on ESHS performance in accordance with the metrics specified in the respective bidding documents and contracts and submit such reports to the Association.	Submit the monthly reports to the Association upon request	Ministry of Finance and National Planning
ESS 1: ASSESSMENT AND MANAGEMENT OF ENVIRONMENTAL AND SOCIAL RISKS AND IMPACTS			
1.1	ORGANIZATIONAL STRUCTURE Establish and maintain a PMU with qualified staff and resources to support management of ESHS risks and impacts of the Project including an environmental specialist and social specialist.	Establish and maintain a PMU as set out in the Financing Agreement	Ministry of Finance and National Planning

MATERIAL MEASURES AND ACTIONS		TIMEFRAME	RESPONSIBLE ENTITY
		Hire or appoint the environmental specialist and social specialist prior to effectiveness, and thereafter maintain these positions throughout Project implementation.	
1.2	ENVIRONMENTAL AND SOCIAL INSTRUMENTS Adopt and implement an Environmental and Social Management Plan (ESMP) (including a sample waste management plan) for the Project, consistent with the relevant ESSs.	Adopt the ESMP no later than 60 days after effectiveness, and thereafter implement the ESMP throughout Project implementation.	Ministry of Finance and National Planning
1.3	MANAGEMENT OF CONTRACTORS Incorporate the relevant aspects of the ESCP, including, inter alia, the relevant E&S instruments, the Labor Management Procedures, and code of conduct, into the ESHS specifications of the procurement documents and contracts with contractors and supervising firms. Thereafter ensure that the contractors and supervising firms comply and cause subcontractors to comply with the ESHS specifications of their respective contracts.	As part of the preparation of procurement documents and respective contracts. Supervise contractors throughout Project implementation	Ministry of Finance and National Planning
1.4	TECHNICAL ASSISTANCE Ensure that the consultancies, studies (including feasibility studies, if applicable), capacity building, training, and any other technical assistance activities under the Project are carried out in accordance with terms of reference acceptable to the Association, that are consistent with the ESSs. Thereafter ensure that the outputs of such activities comply with the terms of reference.	Throughout Project implementation.	Ministry of Finance and National Planning
ESS 2: LABOR AND WORKING CONDITIONS			
2.1	LABOR MANAGEMENT PROCEDURES Adopt and implement the Labor Management Procedures (LMP) for the Project as part of the ESMP, including, inter alia, provisions on working conditions, management of workers relationships, occupational health and safety (including personal protective equipment, Covid-19 procedures and emergency preparedness and response), code of conduct (including relating to SEA and SH), forced labor, child labor, grievance arrangements for Project workers, and applicable requirements for contractors, subcontractors, and supervising firms.	Adopt the LMP no later than 60 days after effectiveness, and thereafter implement the LMP throughout Project implementation.	Ministry of Finance and National Planning

MATERIAL MEASURES AND ACTIONS		TIMEFRAME	RESPONSIBLE ENTITY
2.2	GRIEVANCE MECHANISM FOR PROJECT WORKERS Establish and operate a grievance mechanism for Project workers, as described in the LMP and consistent with ESS2.	Establish grievance mechanism prior engaging Project workers and thereafter maintain and operate it throughout Project implementation.	Ministry of Finance and National Planning
ESS 3: RESOURCE EFFICIENCY AND POLLUTION PREVENTION AND MANAGEMENT			
3.1	RESOURCE EFFICIENCY AND POLLUTION PREVENTION AND MANAGEMENT The requirements of ESS 3, WBG EHS Guidelines and other Good International Industry Practice (GIIP) related to resource use efficiency and pollution prevention and management are to be included in the consultants ToRs for capacity building activities, PforR ESIA guidelines and the project ESMP.	Same timeframe as for the adoption and implementation of the ESMPs.	Ministry of Finance and National Planning
ESS 4: COMMUNITY HEALTH AND SAFETY			
4.1	COMMUNITY HEALTH AND SAFETY Assess and manage specific risks and impacts to the community arising from Project activities, including, inter alia, behavior of Project workers and include mitigation measures in the ESMP. The requirements of ESS 4, WBG EHS Guidelines and other Good International Industry Practice (GIIP) related to community health and safety are to be included in the consultants ToRs for capacity building activities, PforR ESIA guidelines and the project ESMP.	Same timeframe as for the adoption and implementation of the ESMPs.	Ministry of Finance and National Planning
4.2	Adopt and implement a SEA/SH Action Plan as part of the ESMP, to assess and manage the risks of SEA and SH.	Adopt the SEA/SH Action Plan no later than 60 days after effectiveness, and thereafter implement the SEA/SH Action Plan throughout Project implementation].	Ministry of Finance and National Planning
ESS 5: LAND ACQUISITION, RESTRICTIONS ON LAND USE AND INVOLUNTARY RESETTLEMENT			
5.1	RESETTLEMENT PLANS The requirements of ESS 5 related to land acquisition, restrictions on land use and involuntary resettlement are to be included in the consultants ToRs for capacity building activities, PforR ESIA guidelines and the project ESMP.	Same timeframe as for the adoption and implementation of the ESMPs.	Ministry of Finance and National Planning
ESS 6: BIODIVERSITY CONSERVATION AND SUSTAINABLE MANAGEMENT OF LIVING NATURAL RESOURCES			
6.1	BIODIVERSITY RISKS AND IMPACTS The requirements of ESS 6, WBG EHS Guidelines and other Good International Industry Practice (GIIP) related to biodiversity conservation and sustainable management of living	Same timeframe as for the adoption and implementation of the ESMPs.	Ministry of Finance and National Planning

MATERIAL MEASURES AND ACTIONS		TIMEFRAME	RESPONSIBLE ENTITY
	natural resources are to be included in the consultants ToRs for capacity building activities, PforR ESIA guidelines and the project ESMP.		
ESS 7: INDIGENOUS PEOPLES/SUB-SAHARAN AFRICAN HISTORICALLY UNDERSERVED TRADITIONAL LOCAL COMMUNITIES			
ESS7 is not considered relevant to this project as there are no distinct social and cultural groups in the project area that exhibit characteristics of indigenous or traditionally under-served communities as spelled out under this standard. Should a subsequent screening process indicate that a particular group meets the requirements of ESS7 and will be impacted by this project, a social development plan which accords with this standard will be developed.			
ESS 8: CULTURAL HERITAGE			
8.1	CULTURAL HERITAGE RISKS AND IMPACTS The requirements of ESS 8, WBG EHS Guidelines and other Good International Industry Practice (GIIP) related to tangible, intangible and chance finds are to be included in the consultants ToRs for capacity building activities, PforR ESIA guidelines and the project ESMP.	Same timeframe as for the adoption and implementation of the ESMPs.	Ministry of Finance and National Planning
ESS 9: FINANCIAL INTERMEDIARIES			
ESS 9 is not currently relevant to the project			
ESS 10: STAKEHOLDER ENGAGEMENT AND INFORMATION DISCLOSURE			
10.1	STAKEHOLDER ENGAGEMENT PLAN PREPARATION AND IMPLEMENTATION Adopt and implement a Stakeholder Engagement Plan (SEP) for the Project, consistent with ESS10, which shall include measures to, inter alia, provide stakeholders with timely, relevant, understandable and accessible information, and consult with them in a culturally appropriate manner, which is free of manipulation, interference, coercion, discrimination and intimidation.	Prepare and disclose a draft SEP prior to appraisal Adopt the SEP no later than 60 days after effectiveness, and thereafter implement the SEP throughout Project implementation.	Ministry of Finance and National Planning
10.2	PROJECT GRIEVANCE MECHANISM Establish, publicize, maintain, and operate an accessible grievance mechanism, to receive and facilitate resolution of concerns and grievances in relation to the Project, promptly and effectively, in a transparent manner that is culturally appropriate and readily accessible to all Project-affected parties, at no cost and without retribution, including concerns and grievances filed anonymously, in a manner consistent with ESS10.	Establish the grievance mechanism prior to effectiveness, and thereafter maintain and operate the mechanism throughout Project implementation.	Ministry of Finance and National Planning

MATERIAL MEASURES AND ACTIONS		TIMEFRAME	RESPONSIBLE ENTITY
	The grievance mechanism shall be equipped to receive, register, and facilitate the resolution of SEA/SH complaints, including through the referral of survivors to relevant gender-based violence service providers, all in a safe, confidential, and survivor-centered manner.		
CAPACITY SUPPORT			
CS1	Training may be required for staff, stakeholders, communities, Project workers on: • Capacity enhancement support including training for PMU staff based on the identified need to support project risk and E&S impact management. • Grievance redress mechanisms • COVID-19 Infection Prevention and Control Recommendations • Risk and prevention of gender-based violence, including the mechanism for submitting GBV/SEA-H complaints • Occupational Health and Safety	A full training plan will be prepared no later than 60 days after project effectiveness. Conducted at least on an annual basis throughout project implementation.	Ministry of Finance and National Planning